

SENATE BILL 2148

By Pody

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 15; Title 56; Title 62; Title 64 and Title 68,
relative to welding.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 120, is amended by adding
the following as a new part:

68-120-601. Short title.

This part is known and may be cited as the "Responsible Welding for
Tennessean's Safety Act".

68-120-602. Part definitions.

As used in this part:

- (1) "AWS" means the American Welding Society;
- (2) "D1.1" means the current version of the Structural Steel Welding
Code (SSWC), approved American National Standard from the AWS;
- (3) "D1.5" means the current version of the Bridge Welding Code (BWC),
approved American National Standard from the AWS jointly with the American
Association of State Highway and Transportation Officials (AASHTO);
- (4) "Design Professional" means a licensed expert, including engineers,
who creates and plans buildings, structures, or systems, focusing on public
health, safety, and function;
- (5) "Structural steel welding" means structural welds, weld repair, the
structural system, and the welding of all primary steel members of a structure per
SSWC D1.1 and D1.5 established by the AWS; and

(6) "Welding standards" means the specifications, guidelines, tests, and other methods used to develop a system of quality control to ensure that welding is conducted in such a manner that all welds must meet, at a minimum, D1.1 and D1.5 standards established by the AWS.

68-120-603. Structural steel welding — Standards and certification.

(a) If a design professional includes D1.1 or D1.5 in the job specifications for a project involving structural steel welding, then a general contractor, project manager, contractor, or subcontractor must ensure that:

(1) A welder performing structural steel welding on a project is tested and holds a valid certification by:

(A) An accredited AWS testing facility; or

(B) An individual who has been accredited by the AWS to test and certify welders and welding inspectors; and

(2) Structural steel welding performed on a project meets applicable welding standards.

(b) This section does not apply to a welding project performed or requested by a homeowner or farmer on the premises of the homeowner or farmer.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect January 1, 2027, the public welfare requiring it.